

Applicable Law Acts

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User Query :

I paid ₹1,20,000 as an advance for a second-hand car advertised online. The seller sent photographs of the vehicle, an identity document and what appeared to be registration papers. After receiving the money, the seller stopped responding. I later discovered that the vehicle belonged to another person and that some of the documents had been altered. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 5/Combined Act

Prepared by : NyaySahayak

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66D

— Punishment for cheating by personation by using computer resource

Applies if the online seller actually impersonated the vehicle owner or another person through the digital transaction.

Section 66C

— Punishment for identity theft

Applies only if another person's password, electronic signature or unique identification feature was fraudulently used.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The online medium alone does not create an unauthorised-access offence. The selected provisions depend on proof of personation or protected-identifier misuse.

✓ STRENGTHS & RIGHTS

- 1 The transaction was conducted online and included identity/registration documents.

✗ RISKS & OBLIGATIONS

- 1 Do not recharacterise generic cybercrime provisions as document-forgery provisions.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve advertisement, chats, payment records, seller account details and copies of all documents.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 318 **(4) — Cheating and dishonestly inducing delivery of property**

The victim paid ₹1.2 lakh after deceptive representations about the vehicle.

Section 336 **(3) — Forgery for the purpose of cheating**

Potentially applies to altered documents made for the vehicle-sale fraud.

Section 340 **(2) — Using a forged document or electronic record as genuine**

Potentially applies if the seller knowingly used altered documents as genuine.

Section 319 **— Cheating by personation**

Applies if the seller pretended to be the owner or another person.

Section 337 **— Forgery of record of Court or of public register, etc.**

May apply if the altered registration paper is a forged government/public-register document of the kind covered by **section 337**.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The strongest mapping is cheating plus document forgery/use. Personation and the specialised public-record forgery provision depend on what the seller represented and what kind of registration document was altered.

✓ **STRENGTHS & RIGHTS**

1 Advance payment and altered registration material directly support the fraud/document theory.

✗ **RISKS & OBLIGATIONS**

1

Do not use invented BNS 'fraud' sections; use the enacted cheating/forgery provisions.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Keep original files/messages and obtain the genuine vehicle/registration records for comparison.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61

— Electronic or digital record

Online advertisements, chats and digital documents can be electronic records.

Section 62

— Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63

— Special provisions relating to electronic records

Relevant to proving online messages, documents and payment records.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- These provisions govern proof of the electronic sale communications and altered digital documents.

✓

STRENGTHS & RIGHTS

- 1
- Genuine registration records and payment records can corroborate falsity and loss.

✗

RISKS & OBLIGATIONS

1

BSA does not itself define the cheating or forgery offences.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve both the received documents and authenticated comparison documents.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The central facts concern fraud and forged documents, not a Data Fiduciary's processing obligations.

✓ STRENGTHS & RIGHTS

- 1
- Keeps the data-protection analysis focused.

✗ RISKS & OBLIGATIONS

- 1
- If an online platform separately mishandled personal data, additional facts would be required.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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